

## DEBIT ORDER AND PAYMENT AUTHORITY MANDATE

**Authority to collect an agreed amount from your bank account on an agreed date**

Mandate number **[MANDATE NUMBER]** — linked to loan agreement number **[LOAN AGREEMENT NUMBER]**

> **This is not a new loan and it does not add any cost.** It is only your instruction to your bank to pay us what you already agreed to pay under your loan agreement. Signing it is your choice. You may also repay by bank transfer or in cash at our office.

### 1. THE PARTIES

| The lender (the person collecting)           |                                                             |
|----------------------------------------------|-------------------------------------------------------------|
| Registered legal name                        | Quickserve Financial Services CC                            |
| Trading as                                   | QuickServe Cashloan                                         |
| Physical address                             | 3403 Danger Ashipala Street, Swakopmund, Namibia            |
| Telephone / WhatsApp                         | +264 81 264 6222                                            |
| Email                                        | erastusmatheus3@gmail.com                                   |
| Name that will appear on your bank statement | <b>[ABBREVIATED SHORT NAME AS REGISTERED WITH OUR BANK]</b> |

| The account holder (you) |                                        |
|--------------------------|----------------------------------------|
| Full name                | <b>[FULL NAME AS ON NAMIBIAN ID]</b>   |
| Namibian ID number       | <b>[ID NUMBER]</b>                     |
| Physical address         | <b>[PHYSICAL STREET ADDRESS, TOWN]</b> |
| Mobile / WhatsApp number | <b>[MOBILE NUMBER]</b>                 |
| Email                    | [EMAIL ADDRESS OR "NONE"]              |

## 2. THE LOAN THIS MANDATE RELATES TO

| Item                                                  | Amount / date           |
|-------------------------------------------------------|-------------------------|
| Loan agreement number                                 | [LOAN AGREEMENT NUMBER] |
| Amount lent to you (principal)                        | N\$ [AMOUNT]            |
| Interest                                              | N\$ [AMOUNT]            |
| Service fee                                           | N\$ [AMOUNT]            |
| <b>Total finance charges (interest + service fee)</b> | <b>N\$ [AMOUNT]</b>     |
| <b>TOTAL YOU MUST REPAY</b>                           | <b>N\$ [AMOUNT]</b>     |
| Issue date (date the money is paid to you)            | [DATE]                  |
| Due date                                              | [DATE]                  |

- 2.1** These figures are taken from your signed loan agreement and your written quotation. They do not change because you signed this mandate.

## 3. YOUR BANK ACCOUNT

|                        |                                             |
|------------------------|---------------------------------------------|
|                        |                                             |
| Bank                   | [BANK NAME]                                 |
| Branch and branch code | [BRANCH NAME] , [BRANCH CODE]               |
| Account holder name    | [NAME EXACTLY AS IT APPEARS ON THE ACCOUNT] |
| Account number         | [ACCOUNT NUMBER]                            |
| Type of account        | [CURRENT / SAVINGS / TRANSMISSION]          |

- 3.1** You confirm that this account is in your own name and that you are entitled to authorise payments from it.

#### 4. WHAT YOU ARE AUTHORISING US TO COLLECT

|                                                        |                                        |
|--------------------------------------------------------|----------------------------------------|
| Amount of each collection                              | N\$ [AMOUNT]                           |
| Date of the first collection                           | [DATE]                                 |
| How often                                              | [ONCE ONLY / MONTHLY ON THE SAME DATE] |
| Number of collections                                  | [NUMBER]                               |
| Date of the last collection                            | [DATE]                                 |
| Maximum total that may be collected under this mandate | N\$ [AMOUNT]                           |

- 4.1 You authorise QuickServe Cashloan to instruct your bank to pay the amount(s) set out above from your account on the date(s) set out above, and you instruct your bank to act on those instructions.
- 4.2 **The total collected under this mandate may never exceed what you owe under the loan agreement, and may never exceed the maximum total stated above.**

#### 5. HOW COLLECTION WORKS

- 5.1 We collect only through a payment system and payment instrument registered with the Bank of Namibia. We do not use any other method to take money from your account.
- 5.2 If a collection date falls on a Saturday, Sunday or public holiday, we will present the collection on the **first business day after** that date, unless you ask us in writing to present it on the last business day before instead. We will not present it before its stated date without your written request.
- 5.3 We will not split a collection into several smaller amounts, and we will not present it more often than this mandate allows, unless you agree in writing.
- 5.4 Your bank will show the collection on your statement under the name in clause 1.

#### 6. IF A COLLECTION DOES NOT GO THROUGH

- 6.1 If a collection fails because there is not enough money in your account, we may present it **once more**, within [10] business days, and we will send you a message first to tell you the date we intend to present it.
- 6.2 We will not present it again after that without speaking to you and agreeing a new date in writing.
- 6.3 **We do not charge you a fee for a failed collection.** Your own bank may charge you its own fee — that is between you and your bank, and we receive none of it.
- 6.4 A failed collection does not by itself put you in default if you pay us by another means by the due date.

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## 7. THE LIMITS ON THIS MANDATE

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- 7.1 We may not increase the amount, add a collection, or change the date without your written agreement, signed by both of us. This mandate cannot be varied by a phone call, a message or a note in our system.
- 7.2 This mandate covers only the loan agreement identified in clause 2. It does not cover any future loan. A new loan needs a new mandate.
- 7.3 This mandate gives us no right to any other account of yours.
- 7.4 This mandate is **not** an open-ended authority to keep checking your account and collecting whenever money appears.

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## 8. THIS MANDATE IS NOT SECURITY, AND WE HOLD NOTHING OF YOURS

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- 8.1 This mandate is a payment instruction. It is not security for the loan and it gives us no rights over anything you own.
- 8.2 QuickServe Cashloan does not take, hold or use your bank card, your PIN, your banking password, your original Namibian ID, your original passport or your original driver's licence — not as security and not for collection. That conduct is prohibited by section 23(1)(f) of the Microlending Act 7 of 2018. If anyone asks you for these, refuse and report it to NAMFISA.

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## 9. YOUR RIGHT TO CANCEL OR CHANGE THIS MANDATE

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- 9.1 **You may cancel this mandate at any time.** You do not need a reason and we will not treat you differently for doing it.
- 9.2 To cancel, give us written notice — a letter, an email to erastusmatheus3@gmail.com or a WhatsApp message to +264 81 264 6222 is enough. Please give us at least **[3] business days' notice before the next collection date**, so that we can stop the instruction in time.
- 9.3 You may also instruct your own bank to stop the debit order. If you do, please tell us too, so that we do not present a collection that will be rejected.
- 9.4 We will confirm your cancellation in writing within **[2] business days** of receiving it.
- 9.5 To change the amount or the date, sign a new mandate with us. We will replace this one and give you a free copy of the new one.

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## 10. CANCELLING THIS MANDATE DOES NOT CANCEL YOUR LOAN

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- 10.1 This is the most important sentence on this page. **Cancelling or stopping the debit order does not cancel, reduce or suspend what you owe under the loan agreement.** The debt stays.
- 10.2 If you cancel the mandate, you must still pay the amount owing by the due date, by bank transfer or in cash at our office.
- 10.3 Money already lawfully collected while this mandate was in force is not refundable simply because you later cancelled the mandate.

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## 11. IF WE COLLECT THE WRONG AMOUNT

- 11.1** If we collect an amount you did not authorise, or more than you owe, tell us at once. We will investigate and, where we were wrong, **refund the amount to your account within [5] business days**, without you having to ask twice.
- 11.2** You may also dispute an unauthorised or incorrect debit directly with your own bank, within the period your bank allows. Nothing in this mandate takes that right away.
- 11.3** If we caused you a bank charge by collecting in error, we will refund that charge too.

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## 12. WHEN THIS MANDATE COMES TO AN END

- 12.1** This mandate ends automatically on the earliest of:
- 12.1.1** the date you have paid everything owing under the loan agreement;
  - 12.1.2** the last collection date stated in clause 4; or
  - 12.1.3** the date your cancellation takes effect under clause 9.
- 12.2** **When your loan is settled in full we will cancel this mandate with our bank within [2] business days and confirm the cancellation to you in writing.** We will present no further collections after settlement. If you settle early or pay the balance off in one payment, the same applies.
- 12.3** If you settle early, your finance charges are reduced in proportion to the days you actually had the loan, as your loan agreement provides, and we will collect only the reduced settlement amount.

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## 13. THIS IS NOT A SALARY DEDUCTION AUTHORITY

- 13.1** This mandate operates only against the bank account named in clause 3.
- 13.2** It does **not** authorise your employer to deduct anything from your salary, and it does not authorise us to approach your employer for a deduction. Any salary deduction would require a separate written authority signed by you, and would be subject to the limits in the Labour Act 11 of 2007.

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## 14. YOUR DECLARATION

I confirm that:

- 1.** Every space in this mandate was completely filled in before I signed it. **I did not sign a blank or incomplete document.**
- 2.** This mandate was explained to me in a language I understand, namely **[LANGUAGE]**, by **[NAME OF STAFF MEMBER]**. Interpreter, if any: **[NAME OF INTERPRETER OR "NONE"]**.
- 3.** I read this mandate myself ☐ **or** it was read to me ☐.
- 4.** The bank account details in clause 3 are correct and the account is mine.
- 5.** I understand that I may cancel this mandate at any time, and that cancelling it does not cancel my debt.

6. I received a copy of this signed mandate, free of charge, on the day I signed it.
7. Signing this mandate was my choice. I was told I could instead pay by bank transfer or in cash at the QuickServe office.

| Account holder / Borrower |             |
|---------------------------|-------------|
| Full name                 | [FULL NAME] |
| Namibian ID number        | [ID NUMBER] |
| Signature                 | _____       |
| Date                      | [DATE]      |
| Place                     | [TOWN]      |

| For QuickServe Cashloan |                                          |
|-------------------------|------------------------------------------|
| Full name               | [FULL NAME OF AUTHORISED REPRESENTATIVE] |
| Position                | [POSITION]                               |
| Signature               | _____                                    |
| Date                    | [DATE]                                   |
| Place                   | [TOWN]                                   |

| Witness            |                        |
|--------------------|------------------------|
| Full name          | [FULL NAME OF WITNESS] |
| Namibian ID number | [ID NUMBER]            |
| Signature          | _____                  |
| Date               | [DATE]                 |

**Copies:** original to QuickServe Cashloan; a free copy to the account holder on the day of signature; a copy filed with loan agreement number [LOAN AGREEMENT NUMBER].